25TRCV02902 25TRCV02902

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-08

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Case Number: 25TRCV02902 Hearing Date: July 8, 2026 Dept: B

Superior Court

of California

County of Los

Angeles

Southwest

District

Torrance Dept. B

ALEXIS

BERNARDINO, et al.,

Plaintiffs,

Case No.:

25TRCV02902

vs.

[Tentative]

Ruling

KALADAR

CO., INC. d/b/a CAL AUTO NET, et al.,

Defendants.

Hearing
Date: July 8, 2026

Moving Party: Defendant
Westlake Services, LLC dba Westlake Financial Services

Responding Party: Plaintiffs Alexis Bernardino
and Rodrigo Matias

Motion to Set Aside
Default

The Court
considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED. See Order below.

BACKGROUND

On
August 26, 2025, plaintiffs Alexis Bernardino and Rodrigo Matias filed a complaint against defendants Kaladar Co., Inc. d/b/a Cal Auto Net, Westlake Services, LLC d/b/a Westlake Financial Services, and Old Republic Surety Company for (1) violation of the Consumer Legal Remedies Act (injunction only), (2) breach of contract, (3) intentional misrepresentation, (4) negligent misrepresentation, (5) violation of Vehicle Code 11711, (6) civil theft – violation of Penal Code 496, and (7) violation of Bus. and Prof. Code 17200. Plaintiffs allege that on July 29, 2025, plaintiffs purchased a 2019 Chevy Camaro from dealer. Plaintiffs signed a RISC to purchase and finance the vehicle. Sometime later after plaintiffs purchased the vehicle, plaintiffs discovered that the vehicle had suffered frame damage and/or structural damage before dealer sold it to plaintiffs. Dealer purchased the vehicle from a vehicle auction house with frame and/or structural damage. The vehicle auction house disclosed to dealer the quality of the vehicle. On August 18, 2025, plaintiffs rejected the arbitration provision in the conditional sale

contract and security agreement.

On
October 23, 2025, defendant Kaladar Co., Inc. filed a motion to compel arbitration.

On
January 2, 2026, defendant Kaladar withdrew its motion.

On
April 14, 2026, defendant Kaladar filed a motion to compel arbitration.

On
April 14, 2026, plaintiffs filed a request for entry of default as against Westlake Services, LLC.

On
April 23, 2026, plaintiffs filed a request for dismissal as to Kaladar Co., Inc.

On
April 30, 2026, defendant Westlake Services filed an answer.

On
June 2, 2026, defendant Westlake Services filed an answer.

LEGAL
AUTHORITY

CCP
§473(b) states, in relevant part: "The
court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this
relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall
be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application

for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

"[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." Fasuyi v. Permatex, Inc. (2008) 167 Cal. App. 4th 681, 697 (citations and internal quotations omitted).

DISCUSSION

Pursuant to CCP §473(b), under the mandatory provision based on attorney mistake or, alternatively, for discretionary relief based on excusable neglect, defendant Westlake Services, LLC dba Westlake Financial Services requests an order setting aside the default entered against it on April 14, 2026.

Defendant asserts that it did not abandon its defense of the action, and that Auto Legal Group, LLP represented both Kaladar Co, Inc., dba Cal Auto Net and moving defendant in a coordinated defense. Defendant notes that on December 29, 2025, defense counsel filed a Case Management Statement on behalf of both and on January 6, 2026, appeared on behalf of both at the CMC. Defense counsel states in his declaration that he attests that he made a mistake and a clerical error by not putting Westlake on the motion to compel arbitration. He states that the motion was intended to be brought on behalf of both defendants. He states that through mistake and inadvertence, the title and notice of the April 14 motion referenced Kaladar only and did not expressly identify Westlake as a moving party. He states further that although Auto Legal Group appeared in this action on behalf of Westlake before entry of default, he did not file a responsive pleading because he believed that the motion to compel arbitration already filed in this matter adequately protected Westlake’s interests. See Ali Kamarei decl.

In opposition, plaintiffs dispute that Westlake’s omission from two prior motions to compel arbitration was a “clerical” oversight in a coordinated joint defense and that the default was the result of attorney mistake or excusable neglect. Rather, plaintiffs assert, the record supports the inference that Westlake was left out because its contract position was different from Kaladar’s, not because counsel “simply forgot to include it.” Plaintiffs cite to defense counsel’s letters on behalf of Kaladar to plaintiffs’ counsel in an effort to meet and confer regarding arbitration and the proposed stipulation that excluded any finance company from the arbitration. Plaintiff seeks $1350 ($450/hr. x 3 hrs.) in attorney fees if the Court grants the motion.

In reply, defendant argues that the facts establish the predicate for mandatory relief and that plaintiffs have not rebutted the attorney affidavit of fault. Defendant asserts that the proposed stipulation language does not show abandonment; rather it reflects counsel’s understanding that, once arbitration was compelled on the claims arising from the same vehicle transaction, the litigation against Westlake would, at minimum, be stayed and thus counsel believed that Westlake’s interests were protected through the coordinated arbitration and stay strategy. Defendant acknowledges that the Court may direct counsel to pay reasonable compensatory fees incurred in opposing the motion.

The Court rules as follows: The motion is timely. The Court finds that defendant has met its burden of showing that the default was entered against it based on attorney mistake, inadvertence, surprise, and/or neglect under CCP §473(b). Relief is mandatory. The Court directs defendant’s attorney Auto Legal Group LLP to pay reasonable compensatory legal fees to plaintiffs in the amount of $1350.

The motion is GRANTED.

ORDER

The motion is GRANTED. The default entered on April 20, 2026 is set aside and vacated.

The answers filed on April 30 and June 2, 2026 are STRICKEN.

The Court directs defense counsel Auto Legal Group LLP to pay reasonable compensatory legal fees to plaintiffs in the amount of $1350 within 30 days.

Defendant is ordered to file a responsive pleading forthwith.

Moving defendant is ordered to give notice of ruling.